

25STCV15935 25STCV15935

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Division: Civil Law and Motion

Department: 510

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Case Number: 25STCV15935 Hearing Date: September 22, 2026 Dept: 510

No. 7 - Joshua Steven Bernia v.

Qyou USA Inc., et al.

Plaintiff Joshua Steven Bernia's Motion for Leave to File First Amended Complaint

Plaintiff Joshua

Steven Bernia moves for leave to file his first amended complaint to add a cause of action for failure to pay wages due upon separation. Defendants did not file an opposition.

Code of Civil Procedure section 473(a)(1) provides, "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading." Courts exercise their discretion "liberally to permit amendment," and "[t]he policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (Howard v. County of San Diego (2010) 184 Cal.App.4th 1422, 1428.) A motion for leave to amend will normally be granted unless (a) the party seeking to amend has delayed bringing the proposed amendment; and (b) the delay in seeking leave to amend will cause prejudice to an opposing party. (Hirsa v. Superior Court (1981) 118 Cal.App.3d 486, 490.)

While

Plaintiff arguably could have amended his complaint sooner—he resigned from employment in May 2026—that does not mean his delay caused any undue prejudice to Defendants. Trial is still several months away. Defendants did not file an opposition to explain any prejudice they would suffer as a result of the amendment. Thus, the Court will therefore permit Plaintiff to file the first amended complaint.

Disposition

Plaintiff Joshua Steven Bernia's motion for leave to file a first amended complaint is granted. Plaintiff is ordered to file forthwith the proposed first amended complaint attached as Exhibit 3 to the Declaration of Boris Dalis.